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JURISDICTIONAL CORRECTION & EMERGENCY ENFORCEMENT DEMAND: CPUC Commission File No. 753993 (Investor-Owned Pipeline Infrastructure / California Resources Corporation NYSE: CRC)

1 message

lmad <lmad.compliance.review@gmail.com> Thu, Oct 29, 2026 at 9:05 AM
To: consumer-affairs@cpuc.ca.gov, sed@cpuc.ca
Cc: CityClerk@yorba-linda.org, MikeMorganstern@ocfa.org, crc.legal@crc.com, lmad.compliance.review@gmai.com, info@crc.com

To: consumer-affairs@cpuc.ca.gov , sed@cpuc.ca.gov

CC: CityClerk@yorba-linda.org , MikeMorganstern@ocfa.org , crc.legal@crc.com , lmad.compliance.review@gmail.com

Subject: JURISDICTIONAL CORRECTION & EMERGENCY ENFORCEMENT DEMAND: CPUC Commission File No. 753993 (Investor-Owned Pipeline Infrastructure / California Resources Corporation NYSE: CRC)

TO THE CALIFORNIA PUBLIC UTILITIES COMMISSION — SAFETY AND ENFORCEMENT DIVISION (SED):

This communication serves as a formal **Jurisdictional Correction and Emergency Enforcement Request** regarding **CPUC Commission File No. 753993** (attached).

On October 27, 2026, the Consumer Affairs Branch (CAB) issued a closing letter stating a lack of CPUC jurisdiction under the mistaken premise that the subject asset is owned or operated by a "Municipal Utility". **This administrative finding is factually and legally erroneous.**

1. Factual Correction of Asset Ownership & Precise Title Structure

The subterranean high-pressure natural gas transmission main situated at the toe of the slope along Chicago Avenue in Yorba Linda, California, is **not** a municipal asset. The legal title and property rights across the slope parcel are structured as follows:

- **Underlying Fee Ownership:** Fee title to the slope parcel is held by the private underlying deed owner.
- **California Resources Corporation (NYSE: CRC /** crc.com **):** Holds limited subsurface mineral rights and operates high-pressure gas/oil gathering pipeline facilities traversing the toe of the slope following its acquisition of Aera Energy LLC. **There is no dedicated or recorded public utility easement governing CRC's facility alignment.**
- **City of Yorba Linda:** Holds merely a **limited landscape maintenance access easement**. The City holds no fee ownership, nor is there a dedicated public road right-of-way over the slope parcel.

As a publicly traded, independent energy corporation listed on the New York Stock Exchange, California Resources Corporation is an Investor-Owned Entity operating un-easemented high-pressure energy infrastructure subject to direct CPUC regulatory oversight.

2. CPUC SED Mandatory Jurisdiction under General Order 112-F & 49 CFR Part 192
Because this high-pressure transmission line is owned by an investor-owned energy corporation (CRC) operating facilities without a dedicated recorded easement across a parcel encumbered by a limited municipal landscape maintenance easement:

- **The CPUC Safety and Enforcement Division (SED) retains primary statutory jurisdiction over pipeline integrity, public safety, and hazardous corridor encroachment under CPUC General Order 112-F and 49 CFR Part 192.**
- **The unmitigated, high-density forested fuel load (invasive pine and pepper trees) managed under the City's limited landscape easement directly overhangs CRC's pipeline facilities, creating continuous root-system encroachment, soil subgrade destabilization, and severe thermal ignition exposure.**

3. Notice of Municipal Default & Actual Knowledge
The City of Yorba Linda was formally served a Notice of Strict Liability on October 26, 2026, and officially acknowledged receipt via the Assistant City Clerk. The City's administrative default (October 14, 2026) has expired without corrective action. Actual knowledge under CA Government Code § 835 is perfected, voiding municipal immunity.

4. Formal Enforcement Demands
We respectfully demand that the CPUC Safety and Enforcement Division (SED) immediately:

1. **Reopen File No. 753993 under SED jurisdiction.**
2. **Issue an Immediate Facility Protection Demand / Notice of Encroachment to California Resources Corporation (NYSE: CRC) and the City of Yorba Linda pursuant to CPUC GO 112-F.**
3. **Compel Immediate Fuel Hazard Abatement along the Chicago Avenue pipeline corridor to protect adjacent residential structures and critical utility infrastructure.**

Evidentiary Video & Technical Audit Ledger:

- **20-Second Technical Video Evidence: https://youtu.be/9Cw6u9K-664**
- **Immutable Public Audit Ledger: https://github.com/ca-lmad-auditors/yorba-linda-lmad-compliance-audit**

Respectfully submitted,

LMAD Compliance Review

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A Public Safety & Infrastructure Audit Group

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